

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2024CUP0034206: OSVALDO MEDINA, INDIVIDUALLY, AND AS
SUCCESSOR-IN-INTEREST OF THE ESTATE OF KAREEM MEDINA, DECEASED vs
THE COLLECTION AT RIVERPARK, et al.**

09/03/2026 in Department 21

**Motion for Sanctions Against Plaintiff's Counsel Under Code of Civil Procedure Section
128.5**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendants SOCM I, LLC and CenterCal Properties, LLC’s Motion for Sanctions Against Plaintiff’s Counsel Under CCP Section 128.5

Tentative Ruling:

Defendants’ motion for sanctions is DENIED. Attorney Trujillo’s request for sanctions is DENIED without prejudice to file a separate motion pursuant to CCP §128.5 if he so chooses.

Attorney Trujillo is to give notice within two (2) court days.

Analysis:

A trial court may order sanctions incurred as a result of “actions or tactics” made in *subjective* bad faith, that are (1) totally and completely without merit, (2) for the sole purpose of harassing an opposing party, or (3) solely intended to cause unnecessary delay. The phrase “actions or tactics” includes, but is not limited to, “the making or opposing of motions or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading.” (See CCP §128.5; *Marriage of Sahafzadeh-Taeb & Taeb* (2019) 39 Cal.App.5th 124, 134-135.) The reach of §128.5 is both vague and broad, giving the trial court a necessary tool to address a myriad of concerns. (See, e.g., *Levine v. Berschneider* (2020) 56 Cal.App.5th 916, 921 [failing to honor duty of candor and correct a misstatement with the court]; *580 Folsom Assocs. v. Prometheus Develop. Co.* (1990) 223 Cal.App.3d 1, 23-26 [misciting the court record]; *De Vera v. Long Beach Pub. Transp. Co.* (1986) 180 Cal.App.3d 782, 798-799 [refusing to release invalid

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lien absent concessions]; *M.E. Gray Co. v. Gray* (1985) 163 Cal.App.3d 1025, 1034-1035 [delaying the signing of a necessary stipulation]; *Marriage of Gumabao* (1984) 150 Cal.App.3d 572, 573-574 [failing to inform opponent and court that counsel had to miss a hearing]; *Ellis v. Roshei Corp.* (1983) 143 Cal.App.3d 642, 649 [refusing to stipulate to demurrer cure, thus requiring an unnecessary court hearing].)

Here, Attorney Jonathan Morris is seeking an award of sanctions against Attorney Trujillo for opposing the former's demurrer to the First Amended Complaint. The salient history is important for understanding the concern:

- 05/15/2026: Plaintiff files First Amended Complaint;
- 05/17/2026: Attorney Morris, on behalf of his clients SOCM I and CenterCal, sends a pre-demurrer meet and confer letter;
- 06/03/2026: Attorney Morris, on behalf of his clients SOCM I and CenterCal, files demurrer and motion to strike to FAC;
- 06/18/2026: Attorney Trujillo, on behalf of plaintiff, circulates proposed stipulation permitting plaintiff leave to file a Second Amended Complaint;
- 07/02/2026: Attorney Morris declined to sign proposed stipulation to file amended complaint without first being provided a "proposed pleading, redline, or explanation of the proposed amendments;"
- 07/06/2026: Attorney Trujillo provides Attorney Morris with copy of proposed SAC;
- 07/06/2026: Attorney Morris identifies existing/additional defects in the proposed SAC, and declines to stipulate without a further revised SAC with a redline (a review of this lengthy letter permits an inference that counsel would only agree to a pleading that complied with all his demands);
- 07/09/2026: Attorney Trujillo sends substantive response to Attorney Morris, purporting to resolve all of the issues identified in the 07/06/2026 letter, and again asking for a stipulation for leave to amend; Attorney Morris sends another letter offering to stipulate with another list of conditions attached; several hours later, Attorney Trujillo, on behalf of plaintiff, files his opposition to the demurrer, claiming that the demurrer is "moot" because a revised SAC is available, and adding a prayer for \$128.5 sanctions based on Attorney Morris' "refusal" to stipulate to leave to take the hearing on the demurrer off-calendar.
- 07/14/2026: Attorney Trujillo, on behalf of plaintiff, files motion for leave to file SAC
- 07/22/2026: Attorney Morris, on behalf of his clients SOCM I and CenterCal, files Notice of Non-opposition to plaintiff's motion for leave to file SAC;
- 07/24/2026: Court continues the demurrer and motion to strike to 09/14/2026;
- 09/01/2026: Unopposed motion for leave to amend is granted; making the demurrer and motion to strike directed at the FAC moot without need for a hearing.

At present:

1. There is a request by Attorney Morris to sanction Attorney Trujillo under §128.5 because Attorney Trujillo did not timely address meet and confer efforts from 05/17/2026 and 07/09/2026, because Attorney Trujillo called out the issue in his opposition to the

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demurrer, and because Attorney Trujillo allegedly made factual misrepresentations to the Court;

2. There is also a request by Attorney Trujillo to sanction Attorney Morris under §128.5 because Attorney Morris was unwilling to stipulate to allow Attorney Trujillo leave to cure defects in the FAC unless the proposed SAC was, in essence, perfect and to Attorney Morris' sole satisfaction. It was only on the eve of Attorney Trujillo's deadline to file opposition that Attorney Morris began to soften his stance. This request for sanctions is set for hearing 09/14/2026.

First, CCP §430.41 requires that the meet and confer for a demurrer shall take place "in person, by telephone, or by video conference." There was no proper meet and confer in person, by telephone or by video conference by Attorney Morris before proceeding straight to the filing of the demurrer. The offer of a phone call is not the equivalent of an actual phone call. Instead, what Attorney Morris wrote clearly indicated he was unwilling to budge off his demands. As such, Attorney Trujillo was correct when he stated that Attorney Morris refused to stipulate without good cause.

Second, Attorney Morris affirmatively declined to oppose Attorney Trujillo's motion for leave to amend – forcing another hearing on this Court that could have (and should have) been avoided. The unopposed motion was granted on 9/1/26, which should would moot the demurrer and the motion to strike, and which Attorney Morris could have easily agreed to already, yet he still has not done so. As set forth in the State Bar Civility Guidelines:

- ☛ Unless time is of the essence, an attorney should agree to an extension without requiring motions or other formalities.
- ☛ An attorney should place conditions on an agreement to an extension only if they are fair and essential or if the attorney is entitled to impose them, for instance to preserve rights or seek reciprocal scheduling concessions.
- ☛ In complying with any meet and confer requirement in the California Code of Civil Procedure, an attorney should speak personally with opposing counsel and engage in a good faith effort to resolve or informally limit an issue.
- ☛ An attorney should not engage in conduct that forces an opposing counsel to file a motion and then not oppose the motion.
- ☛ An attorney should honor an opposing counsel's requests that do not materially prejudice the rights of the attorney's client or sacrifice tactical advantage.
- ☛ Sanctions should not be sought unless fully justified by the circumstances and necessary to protect a client's legitimate interests and then only after a good faith effort to resolve the issue informally among counsel.

(California Attorney Guidelines of Civility and Professionalism, pages 3, 6, and 8.)

Third, adhering in good faith to a genuine issue in dispute is not an action or tactic subject to possible sanctions. (*Garcia v. Sterling* (1985) 176 Cal.App.3d 17, 22-23.) Attorney Trujillo was unwilling to adopt every condition asserted by Attorney Morris and was prepared to take his disputes to this Court. Attorney Trujillo elected a more prudent approach and sought leave to make some adjustments to the operative pleading. This is not an action or tactic made in

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subjective bad faith, that is (1) totally and completely without merit, (2) for the sole purpose of harassing an opposing party, or (3) solely intended to cause unnecessary delay. The motion by Attorney Morris for sanctions is DENIED.

As to Plaintiff's request for sanctions, a motion for sanctions brought "primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation," may itself be subject to a sanctions *motion*. (CCP §128.5(g).) Attorney Trujillo requests \$3,000 (6 hrs @ \$500/hr) for having to oppose this motion for sanctions which he describes as frivolous. However, Attorney Trujillo's request for sanctions under CCP §128.5(g) does not comply with the safe harbor requirements of CCP §128.5(f)(1) and (g), which requires a separate motion. Accordingly, Attorney Trujillo's request for sanctions is DENIED without prejudice.